

HOUSE BILL 427

By Love

AN ACT to amend Tennessee Code Annotated, Title 4;  
Title 8; Title 50; Title 56 and Title 68, relative to  
living organ donation.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 8, Chapter 50, Part 8, is amended by  
adding the following as a new section:

(a) In addition to leave granted under §§ 8-50-801, 8-50-802, 8-50-806, and 8-50-813, an eligible employee must be granted absence from work for a period of time equal to twelve (12) weeks for recovery from surgery related to a living organ donation. If the eligible employee learns of the surgery date for the living organ donation less than thirty (30) days in advance, then the employee shall give notice as soon as reasonably possible. For the purpose of calculating service anniversary dates, this absence from work is considered full-time employment.

(b) As used in this section:

(1) "Eligible employee" means:

(1) An employee who has been employed full-time with the state for at least twelve (12) consecutive months with an entity described in §§ 8-30-102(a), 8-30-102(b)(2), 8-30-102(b)(6)-(7), and 8-30-102(b)(10)-(13);  
or

(2) An employee who has been employed full-time with the state for at least twelve (12) consecutive months with an entity described in § 8-30-102(b)(9), except for an employee of any administrative board or

commission that is attached to an entity described in § 8-30-102(b)(1) or § 8-30-102(b)(3)-(5); and

(2) "Living organ donor" means an individual who has donated all or part of an organ and is not deceased.

SECTION 2. Tennessee Code Annotated, Title 50, Chapter 1, Part 3, is amended by adding the following as a new section:

(a) An employer shall grant an eligible employee an absence from work for a period of time equal to twelve (12) weeks for recovery from surgery related to a living organ donation. If the eligible employee learns of the surgery date for the living organ donation less than thirty (30) days in advance, then the employee shall give notice as soon as reasonably possible.

(b) As used in this section:

(1) "Eligible employee" has the same meaning as in the Family and Medical Leave Act (29 U.S.C. § 2601 et seq.);

(2) "Employer" means a person or entity that employs one (1) or more employees and includes the state and its political subdivisions; and

(3) "Living organ donation" means a medical procedure by which an individual donates all or part of an organ and is not deceased.

SECTION 3. Tennessee Code Annotated, Title 56, Chapter 7, Part 23, is amended by adding the following as a new section:

(a) An insurer shall not deny coverage, cancel coverage, refuse to issue, determine the price or premium for, or otherwise vary any term or condition of a life insurance policy, disability insurance policy, or long-term care insurance policy for a person based solely, and without any actual, unique, and material actuarial risks, on the status of the person as a living organ donor.

(b) As used in this section, "living organ donor" means an individual who has donated all or part of an organ and is not deceased.

SECTION 4. Tennessee Code Annotated, Title 68, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) The department of health in consultation with the department of commerce and insurance shall produce informational material on living organ donation to educate the public on the:

(1) Benefits and risks of living organ donation; and

(2) Impact of living organ donation on the access of a living organ donor to insurance.

(b) By July 1, 2025, the department of health shall make available on the department's website the informational material on living organ donation described in subsection (a).

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.